

Intermodal Motor Carriers Conference, et al.

v.

Ocean Carrier Equipment Management Association, Inc., et al.

FMC Docket No. 20-14

**Respondents' Response to Complainant's Supplemental
Statement of Undisputed Material Facts**

Public - Unrestricted

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK A/S,
MSC MEDITERRANEAN SHIPPING COMPANY S.A.,
OCEAN NETWORK EXPRESS PTE. LTD., WAN HAI
LINES LTD., YANG MING MARINE TRANSPORT
CORP., AND ZIM INTEGRATED SHIPPING
SERVICES,

Respondents.

FMC Docket No. 20-14

**RESPONDENTS' RESPONSE TO COMPLAINANT'S SUPPLEMENTAL
STATEMENT OF UNDISPUTED MATERIAL FACTS**

OBJECTIONS

A. Respondents object to and have denied those statements in IMCC's Supplemental Statement of Undisputed Material Facts ("SSUMF") which violate the directive set forth in paragraph 15 of the Initial Order entered by ALJ Erin M. Wirth on July 30, 2020 ("Initial Order"), which requires "This document (statement of material facts) must set forth in separately numbered paragraphs a concise statement of each material fact as to which the movant contends there is no genuine dispute." (emphasis supplied) Respondents object to statements which contain multiple statements, and combine multiple assertions, partial quotations from deposition testimony and excerpts from exhibits and other documents in violation of this directive because

they have impeded Respondents' ability to prepare concise and accurate responses. When possible, Respondents have attempted to respond, in good faith, to the statements which violate this directive; otherwise, these improper statements have been denied. Respondents reserve the right to supplement these responses to the extent necessary to avoid having been deemed to admit statements which have been improperly advanced by IMCC in a form that violates the Initial Order.

B. Respondents object to statements which contain or refer to facts which are not material or relevant and have denied same.

C. Respondents object to statements which are conclusory or argumentative, and have denied same.

D. Respondents object to the headings embedded in the IMCC's SSUMF because their inclusion is not contemplated by paragraph 15 of the Initial Order and because they contain assertions which are conclusory and argumentative. The IMCC headings are denied as a whole as not proposed findings of fact, and they are not objected to individually nor are the headings restated herein.

E. Respondents object to IMCC's characterization of non-party hearsay statements, and inadmissible opinions and conclusory statements from non-parties as "facts" in its SSUMF, and Respondents have denied same.

F. Respondents object to IMCC's characterization of documents and testimony that speak for themselves, and Respondents have denied same.

RESPONSES

1. In the Surface Transportation Board ("STB")'s decision approving the formation of NACPC, the STB concluded:

Moreover, the terms of the agreement appear to be just and reasonable. 49 U.S.C. § 14302(c)(2). The agreement outlines the members' plan to implement what appears to be an efficient chassis supply pooling model. The agreement provides for the admission of additional members and describes the procedure for the management of contributions, capital accounts, allocations, and distributions. The agreement also contains provisions that ensure that motor carriers would continue to operate independently and be allowed to acquire chassis for their own use. The Board has not received any comments suggesting that the terms of the agreement are unjust or unreasonable.

North American Chassis Pool Cooperative, LLC – Pooling Application, Docket No. MCF 21050 (Decision, January 22, 2013), CX00001995 at 998.

RESPONSE: Admitted.

2. The Respondent ocean carriers “ [REDACTED] ” Coates Dep., CX00006172 at 63:15-18.

RESPONSE: Denied. This statement is an oversimplified and misleading characterization of the broader testimony given by Mr. Coates, including that he historically performed limited work for ocean carriers but has no ongoing work for any of them. *See generally* Coates Dep., CX00006712, at 56-70. Mr. Coates further explained that neither he nor MICP actively solicit work from ocean carriers but would consider work if requested. *See id.*

3. Respondents' industry expert, Douglass Coates, and/or his current employer MICP Capital (“MICP”) and its predecessor Manalytics, have done paid consulting work for [REDACTED] prior to this matter. *Id.* at 56:5-60:5; *see also* CX00006293 (Coates Dep. Ex. 4) at 293.

RESPONSE: Admitted.

4. Coates, MICP, and/or Manalytics have done paid consulting work for [REDACTED], prior to this matter. Coates Dep., CX00006172 at 61:7-63:15.

RESPONSE: Admitted.

IEP with knowledge of pricing or costs associated with daily chassis leases. Furthermore, the witness also testified that, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] he also noted that [REDACTED]

[REDACTED]

10. In the same confidential memorandum, Wilson wrote that:

[REDACTED]

Id. at 440.

Response: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] This cannot be characterized as fact, since the witness cast doubt on the statement as written.

11. In a November 25, 2015 presentation titled “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” CX00004350 (Compton Dep. Ex.

10) at 358.

Response: Denied. Respondents deny the statement as it is a characterization of non-party hearsay. Further, the quoted language is from a proposal submitted by [REDACTED] and, to the extent that a chassis usage agreement was executed between [REDACTED], discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

12. The November 25, 2015 presentation included [REDACTED]

[REDACTED].

Id.

Response: Denied. Respondents deny the statement as it is a characterization of non-party

hearsay. Further, the quoted language is from a proposal submitted by [REDACTED] and, to the extent that a chassis usage agreement was executed between [REDACTED] discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

13. COSCO's deponent testified that [REDACTED]
[REDACTED] Houghtalin (COSCO) Dep.,
CX00000337 at 326:24-327:15 ([REDACTED])
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]; *see also* July 1, 2021
COSCO/TRAC CUA, CX00003143 (Houghtalin Dep. Ex. 25) at 153.

Response: Denied to the extent that the testimony quoted speaks for itself and cannot be described as fact. Respondents admit that the excerpt from CX00003143 has been accurately quoted.

14. Dr. Langenfeld conducted an analysis that "[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]" Langenfeld
Rebuttal Expert Report, CX00001565 at ¶ 59.

Response: Denied. Respondents' expert has opined that these opinions advanced by Dr.

Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. Further, this statement is based upon a [REDACTED] [REDACTED] which is defective and has numerous flaws. See, Declaration of Dr. James Reitzes dated May 27, 2022, APP2226-48 (“Reitzes Declaration”).

15. Dr. Langenfeld described his analysis as follows:

60. [REDACTED]

61. [REDACTED]

Id. at ¶¶ 60-61.

Response: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. Further, this statement is based upon a [REDACTED] [REDACTED] which is defective and has numerous flaws. See, Reitzes Declaration, APP2226-48

16. Table 1 of Dr. Langenfeld’s Rebuttal Expert Report is an “[REDACTED]

[REDACTED]”

[REDACTED]

Id. at ¶ 61.

Response: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶98-104. Further, this statement is based upon a [REDACTED] [REDACTED] which is defective and has numerous flaws. See, Reitzes Declaration, APP2226-48.

17. Focusing [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]” *Id.* at ¶

62.

Response: Denied. Respondents’ expert has opined that these opinions advanced by Dr.

Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes,

CX00001625, ¶98-104. Further, this statement is based upon a [REDACTED]

[REDACTED] which is defective and has numerous flaws. See, Reitzes Declaration,

APP2226-48.

18. [REDACTED]

[REDACTED]

[REDACTED] See Mark George (IMC) Dep., CX00006209 at 32:7-9 (testifying that [REDACTED]

[REDACTED]); *id.* at 33:2-5 ([REDACTED]

[REDACTED]

[REDACTED]); Kelso (Tri-Modal) Dep., APP0395 at 28:19-29:9 ([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

Response: Denied. This SSUMF does not contain a concise statement of material fact in

violation of Initial Order, ¶15. Further, the testimony cited does not support the assertion made

in the first sentence of this SSUMF. The quoted testimony could support various inferences,

[REDACTED]

[REDACTED]

19. Under Evergreen's chassis model, [REDACTED]

[REDACTED]

[REDACTED] Wang (Evergreen) Dep.,

CX00000773 at 35:23-36:13.

Response: Denied to the extent that this statement ignores additional testimony that Evergreen's shippers are free to forego payment of a CUC and arrange for a chassis themselves. (STIP #63-#65; Wang Dep., p. 35, l. 6-22, CX00000775) (Coates Declaration ¶21c, APP2209). Admitted to the extent that if a customer elects to Evergreen provide the chassis for an MH movement, the shipper pays Evergreen a Chassis Usage Charge that is typically \$80 for the day of interchange plus four working days. (STIP #63-65; Wang Dep., p. 35, l. 3-22, APP0612).

20. [REDACTED]

[REDACTED]. *Id.* at 36:14-38:4 (confirming that

[REDACTED]

[REDACTED]” (37:12-17)).

Response: Admitted. Further, Respondents note that the FMC has found that demurrage and per diem (the latter term is also referred to alternatively as “detention”), “are valuable charges when applied in ways that incentivize cargo interests to move cargo promptly...” (*Final Interpretive*

Rule on Demurrage and Detention Under the Shipping Act, (FMC Dkt. 19-05) at p. 29640)

21. CMA's Tariff Rule 500, titled “Chassis/Merchant Haulage U.S.,” states that:

Under normal circumstances, Carrier will not provide chassis for shipments designated for Port or CY pick-up or delivery. Shippers/Consignees are responsible to secure chassis at their expense prior to pick up or delivery of containers (empty or loaded) from the carriers nominated facility.

In any circumstance Carrier provides a Chassis in the U.S. for shipment moving under merchant haulage in the U.S. a Chassis Provision Charge will be assessed.

For determination of tariff Chassis Provision charge for the U.S. please refer to U.S. Detention rule 300[.]

CX00006241 (Fentress Dep. Ex. 2) at 273; *see also* Fentress (CMA) Dep., CX00000916 at 47:22-49:8 (testifying that [REDACTED]

[REDACTED]).

Response: Denied to the extent that Complainant seeks to assert that motor carriers are responsible for arranging for chassis availability at any port, rail ramp, or other pick up location. The record demonstrates that ocean carriers arrange chassis availability, both CH and MH, including providing forecasting information to IEPs, payment of chassis repositioning costs, and arranging chassis availability to rail ramp operators. Furthermore, motor carrier testimony surrounding the feasibility of chassis self-supply, particularly in rural areas, asserts that motor carriers do not have the means or resources to arrange for chassis availability at ports, rail ramps, and other pick up locations. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] This statement is admitted to the extent that “responsible”

refers to the payment for chassis usage.

22. CMA’s U.S. Detention Rule 300 states that:

In the event the Carrier provides a chassis for moves that are not CH moves for all ports except for Long Beach and Long Angeles port, a Chassis Provision Charge (CPC) of **\$200 per container** shall be assessed to the Motor Carrier. In the event that Carrier provides a chassis for moves that are not CH moves for Long Beach

and Los Angeles, a Chassis Provision Charge (CPC) of **\$250 per container** shall be assessed to the Motor Carrier.

CX00006241 (Fentress Dep. Ex. 2) at 277 (emphasis in original).

Response: Denied. Respondents object to this SSUMF to the extent that the quoted language involves charges for the provision of containers, which are not material to the issues in this case. Further, the CMA tariff speaks for itself, and the quoted language has been taken out of context and does not properly reference charges described in this section of the tariff.. The quoted language appears at the bottom of a page that begins with addressing free time and other arrangements that are made by CMA with respect to containers and chassis. The quoted language also appears in the middle of a paragraph, and IMCC has only presented a portion of the tariff provisions, without including appropriate context that begins before the quoted language and continues with an explanatory table thereafter. *See* CX00006241 (Fentress Dep. Ex. 2) at 276-82.

23. COSCO's Tariff 201, titled "Chassis Usage in the U.S.A.," states that the "Shipper, directly or through its agent or subcontractor, shall be responsible for arranging for a safe and road-worthy chassis, meeting all federal and state regulatory requirements for the land carriage of shipments for which Carrier does not provide chassis." CX00006284 (Houghtalin Dep. Ex. 2) at 284; *see also* Houghtalin (COSCO) Dep., CX00006197 at 63:17-23 (confirming that [REDACTED]).

Response: Admitted.

24. HMM's Tariff Rule No. 21-02, named "Chassis Provision," states: "Merchant Haulage: Where the Carrier is not responsible to provide service beyond CY, port terminal or rail terminal, the Cargo Interest will be responsible for using a safe and roadable chassis and complying with all applicable federal, state and local regulatory requirements for the land

carriage of shipments, and their associated costs.” CX00006285 (Compton Dep. Ex. 2) 286-87; *see also* Compton Dep., CX00006168 at 38:2-16 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

Response: Admitted.

25. Yang Ming’s [REDACTED]” states that:

[REDACTED]

CX00006290 (Micena Dep. Ex. 2) at 290; *see also* Micena (Yang Ming) Dep., CX00006163 at 61:19-63:15 (testifying that [REDACTED])

[REDACTED]).

Response: Admitted.

CMA

26. Pursuant to the January 1, 2017 CMA/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” *See* January 1, 2017 CMA/TRAC CUA, CX00002586 (Fentress Dep. Ex. 16) at 600.

Response. Admitted.

27. Pursuant to the December 3, 2019 CMA/TRAC CUA, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See December 3, 2019 CMA/TRAC CUA, CX00002536 (Fentress Dep. Ex. 19) at 553.

Response. Admitted.

COSCO

28. Pursuant to the May 1, 2016 COSCO/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See May 1, 2016 COSCO/TRAC CUA, CX00003121 (Houghtalin Dep. Ex. 12) at 129.

Response. Admitted.

29. Pursuant to the July 1, 2018 COSCO/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See July 1, 2018 COSCO/TRAC CUA, CX00002782 (Houghtalin Dep. Ex. 20) at 790.

Response. Admitted.

30. Pursuant to the July 1, 2021 COSCO/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See July 1, 2021 COSCO/TRAC CUA, CX00003143 (Houghtalin

Dep. Ex. 25) at 151.

Response. Admitted.

Evergreen

31. Pursuant to November 28, 2016 Evergreen/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” See November 28, 2016 Evergreen/TRAC CUA, CX00003532 at 544.

Response. Admitted.

32. Pursuant to the December 1, 2017 Evergreen/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See December 1, 2017

Evergreen/TRAC CUA, CX00003226 (Wang Dep. Ex. 11) at 241.

Response. Admitted.

33. Pursuant to the October 22, 2019 Evergreen/DCLI EMC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See

October 22, 2019 Evergreen/DCLI EMC CUA, CX00003754 at 767.

Response. Admitted.

Hapag-Lloyd

34. Pursuant to the December 21, 2012 Hapag-Lloyd/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See December 21, 2012 Hapag-Lloyd/TRAC
CUA, CX00004010 at 017.

Response. Admitted.

35. Pursuant to the December 21, 2012 Hapag-Lloyd/DCLI CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” See
December 21, 2012 Hapag-Lloyd/DCLI CUA, CX00004049 at 056.

Response. Admitted.

36. Pursuant to the January 1, 2013 Hapag-Lloyd/Flexi-Van CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See January 1, 2013 Hapag-Lloyd/Flexi-Van CUA, CX00003948 (Barattini Dep.
Ex. 8) at 957.

Response. Admitted.

37. Pursuant to the January 1, 2016 Hapag-Lloyd/DCLI CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See

January 1, 2016 Hapag-Lloyd/DCLI CUA, CX00004101 (Barattini Dep. Ex. 9) at 108.

Response. Admitted.

38. Pursuant to the January 1, 2016 Hapag-Lloyd/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See January 1, 2016 Hapag-Lloyd/TRAC CUA, CX00004115 at 139.

Response. Admitted.

39. Pursuant to the October 1, 2018 Hapag-Lloyd/DCLI CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See October 1, 2018 Hapag-Lloyd/DCLI CUA, CX00003894 at 902.

Response. Admitted.

40. Pursuant to the January 1, 2019 Hapag-Lloyd/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” See January 1, 2019 Hapag-Lloyd/TRAC CUA, CX00003906 at 919.

Response. Admitted.

HMM

41. Pursuant to the June 19, 2013 HMM/DCLI CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” See June 19, 2013 HMM/DCLI CUA, CX00004382 (Compton Dep. Ex. 8) at 423.

Response. Admitted.

42. Pursuant to the November 30, 2017 HMM/DCLI CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” See November 30, 2017 HMM/DCLI CUA, CX00004191 (Compton Dep. Ex. 12) at 202.

Response. Admitted.

Maersk

43. Pursuant to the January 1, 2015 Maersk/DCLI CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” See January 1, 2015 Maersk/DCLI CUA, CX00004613 (Weisberg Dep. Ex. 5) at 627.

Response. Admitted.

44. Pursuant to the July 1, 2018 Maersk/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” See July 1, 2018 Maersk/TRAC CUA, CX00004652 at 672.

Response. Admitted.

MSC

45. Pursuant to the March 26, 2015 MSC/DCLI CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” See

March 26, 2015 MSC/DCLI CUA, CX00004551 (Roveccio Dep. Ex. 21) at 561.

Response. Admitted.

ONE

46. Pursuant to the March 1, 2018 ONE/TRAC GTC, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” See March 1, 2018 ONE/TRAC GTC, CX00005429

(Armstrong Dep. Ex. 5) at 438.

Response. Admitted.

47. Pursuant to the June 1, 2020 ONE/FVLI CUPA, “[REDACTED]
[REDACTED]
[REDACTED]”

See June 1, 2020 ONE/FVLI CUPA, CX00005382 (Armstrong Dep. Ex. 11) at 393.

Response. Admitted.

Wan Hai

48. Pursuant to the February 1, 2016 Wan Hai/TRAC CUA, “[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED].” See February 1, 2016 Wan Hai/TRAC CUA, CX00005777 (Chung Dep. Ex. 5) at 784.

Response. Admitted.

49. Pursuant to the April 1, 2020 Wan Hai/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See April 1, 2020 Wan Hai/TRAC CUA, CX00005789 (Chung Dep. Ex. 7) at 796.

Response. Admitted.

Yang Ming

50. Pursuant to the October 1, 2013 Yang Ming/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See October 1, 2013 Yang Ming/TRAC CUA, CX00006027 (Micena Dep. Ex. 13) at 035.

Response. Admitted.

51. Pursuant to the May 1, 2014 Yang Ming/TRAC COCP CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See May 1, 2014 Yang Ming/TRAC COCP CUA, CX00006013 (Micena Dep. Ex. 14) at 021.

Response. Admitted.

52. Pursuant to the May 1, 2014 Yang Ming/TRAC LABP CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” See May 1, 2014 Yang Ming/TRAC LABP CUA, CX00005987 (Micena Dep. Ex. 28) at 995.

Response. Admitted.

53. Pursuant to the January 1, 2017 Yang Ming/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See January 1, 2017 Yang Ming/TRAC CUA, CX00005859 (Micena Dep. Ex. 18) at 867-68.

Response. Admitted.

54. Pursuant to the January 1, 2020 Yang Ming/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” See January 1, 2020 Yang Ming/TRAC CUA, CX00005832 (Micena Dep. Ex. 25) at 840.

Response. Admitted.

ZIM

55. The March 1, 2016 ZIM/TRAC CUA incorporated “[REDACTED]

[REDACTED]

[REDACTED]” See March 1, 2016 ZIM/TRAC CUA, CX00006040

(Messing Dep. Ex. 18) at 040.

Response. Admitted.

56. Pursuant to the January 1, 2016 TRAC Intermodal General Terms and Conditions for Equipment User Agreement, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” CX00006295 at 305.

Response. Admitted.

Respectfully submitted,

COZEN O’CONNOR

HOLLAND & KNIGHT

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